

#	Case Name	Tentative
1	Azadzoi vs. Tira 2026-01554017	Demurrer to Complaint <i>Continued to 11/19/26</i>
2	Costa vs. Lardas Systems, Inc. 2026-01571183	Motion to Be Relieved as Counsel of Record <i>Continued to 10/23/26</i>
3	Kiani vs. Masimo Corporation 2024-01426785	Motions to Compel (3) <i>Continued to 11/19/26</i>
4	Lear vs. Electric Car Sales & Service, Inc. 2024-01440975	Motion for Summary Judgment and/or Adjudication Cross-Defendant Walt Disney Parks and Resorts U.S., Inc.’s (WDPR) Motion for Summary Judgment is DENIED. This case arises from the alleged wrongful death of Bonny Lear, a WDPR who suffered a fatal head injury after falling off a golf cart that Electric Car Sales & Services, Inc. (ECSS) delivered to the Disneyland Hotel. As it had done for 20+ years, when WDPR needed to rent a golf cart WDPR would send a purchase order to ECSS with that request. ECSS agrees to the terms and conditions in the purchase order by delivering the requested goods to WDPR. On May 9, 2024, ECSS delivered the golf cart ordered to the Wands warehouse at the Disneyland Resort. At the time of delivery, ECSS’s delivery driver, Christian Hernandez, presented the Delivery Ticket to WDPR for signature by Shannon Siegel, who was a Stage Technician at WDPR. Ms. Siegel’s duties included receiving and coordinating the delivery of equipment to the Disneyland Resort, and her responsibilities were limited to accepting the delivery of previously ordered goods and notifying the appropriate person or business unit that the item was available for pickup. The Delivery Ticket contains a provision that purports to require WDPR to indemnify ECSS “against any claim, suites [sic] and actions, including negligence and strict liability, whoever [sic] made for losses or injuries related to the Equipment.”

	The issue presented by this motion for summary judgment is whether Ms. Siegel had authority to bind WDPR to a contract, i.e., the indemnification provision in the Delivery Ticket. First Cause of Action – Express Indemnification “Express indemnity refers to an obligation that arises by virtue of express contractual language establishing a duty in one party to save another harmless upon the occurrence of specified circumstances and is enforced in accordance with the terms of the contracting parties’ agreement.” (<i>C.W. Howe Partners Inc. v. Mooradian</i> (2019) 43 Cal.App.5th 688, 699.) The party seeking to enforce a contract with a corporation has the burden of establishing the contracting officer’s authority to bind the corporation. (<i>Snukal v. Flightways Mfg., Inc.</i> (2000) 23 Cal.4th 754, 779-780 [citing <i>Mariposa Commercial etc. Co. v. Peters</i> (1932) 215 Cal. 134, 141].) “To properly prove a contract claimed to be binding on the corporation, it should be shown that it was made on its behalf by someone who had authority to act for it.” (<i>Ibid.</i>) A corporate employee only “has such authority as the principal, actually or ostensibly, confers upon [them.]” (Civ. Code, § 2315.) ECSS concedes that Ms. Siegel did not have actual authority to bind WDPR by signing the Delivery Ticket. Rather, ECSS argues that Ms. Siegel had ostensible authority. Ostensible Authority “Ostensible authority is such as a principal, intentionally or by want of ordinary care, causes or allows a third person to believe the agent to possess.” (Code Civ. Proc. § 2317) Ostensible authority must be based on the acts or declarations of the principal, not solely upon the agent’s conduct. (<i>Kaplan v. Coldwell Banker Residential Affiliates, Inc.</i> (1997) 59 Cal.App.4th 741, 747.) “[O]stensible authority arises as a result of conduct of the principal which causes the third party reasonably to believe that the agent possesses the authority to act on the principal's behalf. Ostensible authority may be established by proof that the principal approved prior similar acts of the agent. [W]here the principal knows that the agent holds himself out as clothed with certain authority, and remains silent, such conduct on the part of the principal may give rise to liability. (<i>Chicago Title Ins. Co. AMZ Ins. Services, Inc.</i>
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(2010) 188 Cal.App.4th 401 426-427 [internal citations and quotations omitted].)

WDPR argues there is no evidence it made any representation to ECSS regarding Ms. Siegel’s authority to bind WDPR to a contract. The only Disney personnel who communicated to it about the Delivery Ticket were Ms. Siegel, Mr. Vanhouten, and Mr. Laurendeau. None of these individuals ever indicated or discussed the authority of Ms. Siegel. Therefore, they could not have led ECSS to believe Ms. Siegel had authority to bind WDPR. The evidence demonstrates that Ms. Siegel was nothing more than a warehouse employee who happened to be there when ECSS dropped off the golf cart and asked for a signature on the Delivery Ticket.

In opposition, ECSS presents evidence of a 20+ year business relationship with WDPR. In that period of time, the routine has been the same: WDPR generates a purchase order for a golf cart rental and ECSS delivers the cart with a Delivery Ticket containing the disputed indemnification clause, signed by an authorized WDPR representative. It is undisputed by WDPR that in the entire time that WDPR and ECSS have been doing business in this manner, WDPR has never commented, questioned, objected, or refused to sign the Delivery Ticket or cancelled a purchase order due to the indemnity language in the Delivery Ticket. (Statement of Additional Disputed Facts, Nos. 37 and 38.) If WDPR objected to the indemnity language, it had ample opportunity prior to May 9, 2024, to notify ECSS of its objections. It did not. Therefore, it was reasonable for ECSS to rely on this course of conduct to believe that the indemnity language was acceptable to WDPR and/or that the WDPR employee who signed for the golf carts had authority to do so.

Moreover, WDPR has submitted no evidence that it ever informed ECSS that certain employees were not authorized to sign the Delivery Ticket or bind WDPR to the indemnity provision contained therein. Thus, when Mr. Hernandez, who has 20+ years in delivering golf carts to WDPR, delivered the subject golf cart to WDPR it was reasonable for him to believe that Ms. Siegel had authority to accept delivery of the cart and to sign the Delivery Ticket on behalf of WDPR. (Fernandez Decl., ¶¶ 4-6.) Ms. Siegel, who presumably is aware of her role within the WDPR organization, never informed Mr. Hernandez that she did not have authority to sign the Delivery Ticket. In fact, her declaration states her “only responsibility as a Stage Technician when it came to the shipment of goods to the Disneyland Resort, including the Wands

	warehouse, was to accept delivery of previously-ordered goods.” (Siegel Decl., ¶ 7.) Such statement undermines WDPR’s argument that Ms. Siegel just happened to be there when the golf cart was delivered. To the contrary, she was the designated personnel to accept the shipment of goods. Based on the foregoing, the Court finds a triable issue of material fact exists as to whether Ms. Siegel had ostensible authority to bind WDPR. Course of Performance A course of performance arises when a contract involves several repeated occasions for performance by either party, the other party has knowledge of the nature of the performance, and the other party has an opportunity to object but fails to do so. (Com. Code § 1303.) A “course of dealing” is a sequence of conduct concerning previous transactions between the parties to a particular transaction that is fairly to be regarded as establishing a common basis of understanding for interpreting their expressions and other conduct. (Com. Code § 1303, subd. (b).) As stated above, WDPR and ECSS have a 20+ year course of dealing. In that period of time, WDPR never commented, questioned, objected, or refused to sign the Delivery Ticket or cancelled a purchase order due to the language in the Delivery Ticket. ECSS has never received any rejection to the Delivery Ticket clause from WDPR. (Hernandez Decl., ¶¶ 4- 6; Navato Decl., ¶¶ 6-7.) There is also no evidence WDPR ever informed ECSS that the receiving employees were not authorized to bind WDPR to any contractual language in the Delivery Ticket. Thus, the course of performance of the parties in this case suggests an acceptance of the indemnification terms. Accordingly, a triable issue of material fact exists as to whether WDPR assented to the indemnification terms in the Delivery Ticket. Workers’ Compensation Under Labor Code section 3864, an employer is not obligated to indemnify a third party who has been found liable to an employee injured as a result of the joint negligence of the employer and the third party, unless there is a written agreement to the contrary executed prior to the injury.
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		In this case, the indemnification provision in the Delivery Ticket was signed prior to the injury to Ms. Lear on June 5, 2024. Therefore, ECSS's claim for indemnification is not necessarily precluded by Section 3864 For all the foregoing reasons, the motion is DENIED as to the first cause of action. Second Cause of Action - Declaratory Relief Because the court finds there are triable issues of fact as to ECSS's claim for indemnification, it cannot grant summary judgment on the declaratory relief claim in favor of WDPS. Accordingly, the motion is DENIED as to the second cause of action. Clerk to give notice.
5	Martin vs. McGillivray 2022-01276636	Motion for Change of Venue (Transfer) Defendants Keri Lynn McGillivray and Jonathan McGillivray's motion to transfer venue and consolidate is DENIED. (See Code Civ. Proc., §§ 403, 404.1; Cal. Rules of Court, rule 3.500.) The McGillivray defendants seek an order transferring a related action pending in San Bernardino Superior Court, <i>Stanford, et al. v. Toyota Motor Corporation, et al.</i>, Case No. CIVSB2218524 (the Stanford action), to the Orange County Superior Court, and consolidating it with the instant action, <i>Martin v. McGillivray, et al.</i>, Orange County Superior Court, Case No. 30-2022-01276636 (the Martin action). The court on its own motion takes judicial notice of the case information for and filings in the Stanford action that are publicly available on the San Bernardino Superior Court's official website. (See Evid. Code, § 452, subds. (d), (h); San Bernardino Superior Court, Court Access Portal, https://sanbernardino.courts.ca.gov/divisions/civil/court-case-information-and-document-sales [using Case No. "CIVSB2218524," as accessed and viewed on 9/11/26].) The court on its own motion also takes judicial notice of the record and charging documents in Keri Lynn McGillivray's (hereinafter, Keri) related criminal cases arising from the same subject accident as the Martin and Stanford actions, specifically: (1) <i>People v. Keri</i>